

5.

CASE #	CASE NAME	HEARING NAME
CVRI2403632	LOPEZ vs COMMUNITY CARE REHAB CENTER, LLC	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling:

Moving party: Defendant Mousa Matar, M.D. and Mousa Matar, M.D., Inc.
Responding party: Plaintiffs Josellin Lopez, et al.

This is medical malpractice case. On 1/17/2025, Josellin Lopez, as heir and successor in Interest to the Estate of Renardo Otoniel Lopez, deceased, Renardo Natael Lopez, Jr., as an heir, Cristian Alexander Lopez, as an heir, Gisselle Natalie Lopez, as an heir, and Jaylene Teresa Lopez, as a minor through her guardian ad litem Josellin Lopez ("Plaintiffs") filed the operative first amended complaint ("FAC") against Mousa Matar, M.D. and Mousa Matar, M.D., Inc. ("Dr. Matar"), among other parties. Relevant to this motion, the complaint asserts causes of action for professional negligence and wrongful death against Defendants. The FAC concerns medical care provided to Renardo Otoniel Lopez ("Decedent"), who died on 7/17/2023. (FAC, ¶ 2.)

On 6/27/2023, Decedent was admitted to the emergency room at St. Bernardine Medical center with stroke-like symptoms, with a prior history of strokes. (FAC, ¶ 16.) On 6/30/2023, Decedent was transferred to Defendant Community Care Rehab Center, LLC ("Community") for post-stroke recovery treatment and rehabilitation. (*Id.*) Dr. Matar provided treatment to Decedent during Decedent's time at Community. (*Id.* at ¶ 17.) While at Community, Decedent suffered two unwitnessed falls. (*Id.*)

Relevant to this motion, after Decedent's first fall, moving party Dr. Matar is alleged to have notified Decedent's designated contact to consult regarding the decision to keep Decedent at Community rather than transfer him to a local hospital for evaluation for the injuries sustained in the falls. (*Id.*)

Now, Dr. Matar moves for summary judgment. Only the first cause of action for professional negligence and second cause of action for wrongful death are brought against Dr. Matar.

Dr. Matar argues that the undisputed facts show he complied with the standard of care when treating Decedent, negating any breach of duty and that there is an absence of legal causation between any negligent act or omission by Dr. Matar and Decedent's death. In support, Dr. Matar provides an expert declaration from Ryan P. Klien, M.D. ("Dr. Klien").

In opposition, Plaintiffs provide expert testimony from Omar S. Darish, MSc., D.O. ("Dr. Darish") and argue that the conflicting expert opinions create a triable issue of material fact, such that the court should deny the motion entirely.

In reply, Dr. Matar objects to Dr. Darish's declaration and argues without it, Plaintiff fails to create a triable issue of material fact.

ANALYSIS

I. Summary Judgment Standard

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 855.) A defendant can meet his initial burden by showing that one or more elements of the cause of action cannot be established, or that there is a complete defense. (CCP § 437c(p)(2).) To demonstrate that a cause of action cannot be established, the defendant must either negate an essential element of the plaintiff's cause of action or show that the plaintiff lacks evidence. (*Chavez v. Glock* (2012) 207 Cal.App.4th 1283, 1301.) To negate an element, the defendant must establish that plaintiff's claims fail as a matter of law. (*Eriksson v. Nunnick* (2011) 191 Cal.App.4th 826, 849 (applying rule to issues of duty).) To demonstrate that the plaintiff lacks evidence, the defendant must show that the plaintiff does not possess and cannot reasonably obtain needed evidence. (*Aguilar*, supra, 25 Cal.4th at 855.) A defendant may not simply point to an absence of evidence but must show that the plaintiff cannot reasonably obtain evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.)

Once that burden has been met, the burden shifts to the opposing party to produce admissible evidence showing a triable issue of material fact exists. (CCP § 437c(p)(2); *Arcienaga v. Bank of San Bernardino* (1997) 52 Cal.App.4th 213, 231.) Although summary judgment is no longer considered a "disfavored" procedure, the rule continues that the moving party's evidence must be strictly construed, while the opposing party's evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832.)

II. MSJ - Merits

A. Evidentiary Objections

Plaintiffs submit nine evidentiary objections to the Declaration of Dr. Klein on the grounds of improper legal conclusion, lacks foundation, and expert opinions based on speculation. The court OVERRULES the objections – Dr. Klien presents sufficient foundation, reasoning, and evidentiary support for his opinions.

Similarly, Dr. Matar submits three evidentiary objections to the Declaration of Dr. Darwish on the grounds of improper and conclusory expert opinions and lacks foundation. The court OVERRULES these objections as well as Dr. Darwish also provides sufficient foundation, reasoning, and evidentiary support for his opinions.

B. Request for Judicial Notice

Plaintiffs request judicial notice of Decedent's death certificate. The court DENIES the request as irrelevant to the court's determination on this motion. (*Aquila, Inc. v. Superior Court* (2007) 148 Cal.App.5th 556, 569 [only relevant material may be noticed].)

C. Conflicting Expert Opinions Creates a Triable Issue of Material Fact

The duty owed by a medical provider is established by the standard of care followed by other medical providers in the same or similar community. "Expert evidence in a medical malpractice suit is conclusive as to the proof of the prevailing skill and learning in the locality and of the propriety of the particular conduct by the practitioner and in particular instances because such a standard and skill is not a matter of general knowledge and can only be supplied by expert testimony." (*Willard v. Hagemeister* (1991) 121 Cal.App.3d 406, 412.) Where the moving party produces competent expert opinion declarations showing that there is no triable issue of fact on an essential element of the opposing party's claim, the opposing party's burden is to produce competent expert opinion declarations to the contrary. (*Ochoa v. Pacific Gas & Elec. Co.* (1998) 61 Cal.App.4th 1480, 1487.)

Dr. Matar presents the declaration of Dr. Klein, a medical doctor who evaluates and treats patients in community care facilities. (Declaration of Dr. Klien, ¶ 1.) Dr. Klein opines that Dr. Matar met the standard of care in all respects for the care and treatment provided to Decedent. (*Id.* at ¶ 7.) Once notified about Decedent's first fall on 7/3/2023, Dr. Klien states that Dr. Matar recommended transfer to the ER for further evaluation and a CT scan and when the patient refused the transfer, Dr. Matar drove to Community and evaluated Decedent himself. (*Id.* at ¶ 8.) Dr. Matar again recommended a transfer but again Decedent refused. (*Id.*) Dr. Klien states that the medical records show Decedent had the mental capacity to make medical decisions and his refusal to be transferred was his right as a patient. (*Id.*) Dr. Klien then opines that Dr. Matar followed the standard of care in recommending neurological checks every hour for the next 72 hours. (*Id.* at ¶ 9.) Dr. Klien also opines that it is within the standard of care for Dr. Matar to have relied on staff at Community to have notified family members of Decedent about the fall. (*Id.* at ¶ 10.) As to causation, Dr. Klien opines that, to a reasonable degree of medical probability, there is nothing Dr. Matar did that contributed to the ultimate passing of Decedent. (*Id.* at ¶¶ 11-12.) This is sufficient for Dr. Matar to meet his initial burden.

In opposition, Plaintiffs rely on the declaration of Dr. Darwish, a full-time practicing Hospitalist at UC Irvine Medical Center, and who has training and experience managing a patient who suffers a fall and head injury, for assessing a patient's capacity to refuse care, and for escalating a change in neurological status. (Declaration of Dr. Darwish, ¶¶ 1-4.) Dr. Darwish offers a conflicting opinion as to whether Dr. Matar fell below the standard of care when determining whether Decedent had the capacity to refuse care. (*Id.* at ¶ 19.) Relying on Dr. Matar's deposition, Dr. Darwish states that Dr. Matar simply asking Decedent whether he understood is insufficient to properly determine capacity. (*Id.* at ¶ 20.) Dr. Darwish opines that further evaluation was required

because Decedent had a recent cerebral infarction, a history of stroke, and an acute head injury which together, “raise a real question of underlying dementia.” (*Id.* at ¶ 21.) Dr. Darwish opines that there should have been a doubt as to Decedent’s mental capacity given his history and the fall and that the standard of care requires a physician to resolve that doubt with a validated cognitive screening tool and/or contacting a family member. (*Id.* at ¶ 22.)

Dr. Darwish also provides a conflicting opinion regarding causation. Dr. Darwish states that Decedent was on medication ordered by Dr. Matar that placed Decedent at a high risk of bleeding – especially after head trauma. (*Id.* at ¶¶ 23-25.) “Against that risk, a new headache three days after a documented head strike, together with a second, unexplained fall the same evening in which [Decedent’s] knees ‘buckled’, should have been treated as probable evidence of an evolving intracranial process....It was not within the standard of care to manage this with nursing-level observation, ice, and monitoring.” (*Id.* at ¶ 26.) Dr. Darwish opines that, within a reasonable degree of medical certainty, that this departure was a substantial factor in Decedent’s death. (*Id.* at ¶ 32.)

Dr. Darwish’s testimony creates a triable issue of material fact as to whether Dr. Matar fell below the standard of care in evaluating Decedent’s capacity to refuse treatment on 7/3/2023, failing to contact Decedent’s daughter given the likely lack of capacity, and whether Dr. Matar’s treatment on 7/6/2023 was a substantial factor in Decedent’s death.

The court DENIES the motion for summary judgment.

Summary

DENY Plaintiffs’ request for judicial notice of Decedent’s death certificate.

OVERRULE Plaintiffs’ and Dr. Matar’s evidentiary objections.

DENY the motion for summary judgment as Plaintiffs’ expert, Dr. Darwish, creates a triable issue of material fact as to whether Dr. Matar fell below the standard of care in evaluating Decedent’s capacity to refuse treatment on 7/3/2023, failing to contact Decedent’s daughter given the likely lack of capacity, and whether Dr. Matar’s treatment on 7/6/2023 was a substantial factor in Decedent’s death.